

		contract is tortious only when some independent duty arising from tort law is violated. <u>Ibid.</u> Here, notwithstanding the moving defendants’ status as the master landlord, the second cause of action does not show that they owed plaintiff a duty of care to disclose the existence of the sewer odors to plaintiff before it entered into the sublease with co-defendant Urgentmed Management. Moreover, plaintiff is attempting to enforce contractual provisions rather than some independent duty. The second cause of action for negligence fails to set forth a claim against the moving defendants and the demurrer to this cause of action is sustained. <u>Third cause of action for fraud based on intentional misrepresentation and concealment.</u> The third cause of action is for fraud based on intentional misrepresentation and concealment. Like the first two causes of action, it is asserted against all defendants. Also, like the first two causes of action, the third cause of action refers to all defendants, i.e., the moving defendants and co-defendant Urgentmed Management, collectively as “the landlord” when, in fact, the sublease and master lease that are attached to the complaint show that moving defendants are the master landlord and parties to the lease with co-defendant and that the co-defendant is a party to the sublease with plaintiff. In spite of this distinction, plaintiff alleges that “the landlord” made certain representations with respect to the leasing of the premises and that they failed to disclose known defects in the property to plaintiff. (See Complaint, ¶ FR-2.) Because the cause of action fails to distinguish between the moving defendants and the co-defendants, it is not pled with the specificity required of a claim for fraud. Specifically, it is unclear as to who exactly made the purported representations, how the representations were made, and when they were made. It also does not provide any information as to how defendants would have owed plaintiff a duty to disclose any defects in the property. The third cause of action for fraud fails to set forth a claim against the moving defendants and the demurrer to this cause of action is sustained.
6	26-0156888 <i>Howden US Services, LLC vs. Acrisure of California, LLC</i>	Preliminary Injunction Plaintiffs Howden US Services, LLC, Howden US Specialty, LLC and Patrick Thomas’ request for a preliminary injunction is DENIED. Likelihood of prevailing on the merits The burden is on the party “seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction.” (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481 [citation omitted].) “In deciding whether to issue a preliminary injunction, a court must weigh two ‘interrelated’ factors: (1) the

likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678 [citation omitted].) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Id.* at p. 678 [citation omitted].)

Cause of action for unfair competition

The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.) “By proscribing ‘any unlawful’ business practice, ‘section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 “unlawful” violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

“California courts have applied a variety of tests to determine whether a business practice is unfair under the UCL. “Under the UCL’s unfairness prong, courts consider either: (1) whether the challenged conduct is ‘tethered to any underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law,’; (2) whether the practice is ‘immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers,’; or (3) whether the practice’s impact on the victim outweighs ‘the reasons, justifications and motives of the alleged wrongdoer.’” (*Naranjo v. Doctors Medical Center of Modesto, Inc.* (2025) 111 Cal.App.5th 408, 437 [cleaned up].)

Finally, “[w]hether a business practice is deceptive under the ‘fraudulent’ prong of the UCL is based on the likely effect such practice would have on a reasonable consumer. ‘Likely to deceive’ for purposes of the UCL indicates it is probable that a significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled. . . . A perfectly true statement couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information, is actionable under the UCL. (*Sepanossian v. National Ready Mix Concrete Co.* (2023) 97 Cal.App.5th 192, 200 [cleaned up].”

Emails sent by Acrisure

Plaintiffs contend emails sent by Acrisure beginning on 5/19/26 were fraudulent, unlawful, and unfair as they led clients to believe they related to the client’s recent decision to switch to Howden US from Acrisure rather than having intended opposite effect, i.e., to *rescind* the

client's designation of Howden US as broker of record and reinstate Acrisure.

Specifically, Plaintiffs contend the subject line of these cold emails simply said "Rescinding AOR [Agent of Record]" followed by the client's name, and the body of the email only said "[name of sender] sent you a document to review and sign." (Thomas Decl., ¶ 31, Ex. 2.) As such, Plaintiffs contend that without context, a reasonable client would believe that these emails, which came from an "@acrisurellc.com" email address, were transmitting documents relating to the client's recent decision to switch to Howden US from Acrisure, and not the other way around.

Second, Plaintiffs contend the linked document itself contained a BOR letter that was already pre-drafted on the client's letterhead which was intended to suggest the letters were documenting a decision that had already been communicated (i.e., the client's initial switch to Howden US). (Thomas Decl., ¶ 40, Ex. 9.)

The parties do not dispute the emails reflect they were being sent from an Acrisure email as they included the email domain "@acrisurellc.com."

The one-page letter attached to the email states:

This will confirm that **Acrisure LLC** is appointed Agent of Record / Broker of Record on all insurance matters in connection with the referenced insured effective immediately.

This appointment supersedes and revokes any previous Agent of Record / Broker of Record letter, and will remain in force until cancelled by an officer of this Company.

This letter also constitutes the authority of any Insurer or Underwriter to furnish Acrisure any information or data that may be required in order to respond to our present and future insurance needs.

(Thomas Decl., Ex. 9 [emphasis in original].)

The letter consists of only three sentences, clearly states it appoints Acrisure LLC (which is written in bold) as Agent of Record/Broker of Record on all insurance matters, and that it supersedes and revokes any previous Agent of Record/Broker of Record letter. As such, it is neither verbose nor does it consist of any particularly complex words or legal jargon.

Thus, while a "reasonable consumer" need not be 'exceptionally acute and sophisticated' (*Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 509-510 [citation omitted]), Plaintiff does not demonstrate a reasonable consumer would not read a one-page, three-sentence letter before signing it.

Moreover, while “[a] perfectly true statement” may be actionable under the UCL if “couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information,” (*Sepanossian, supra*, 97 Cal.App.5th at p. 200 [cleaned up]), the Court does not find the letter is couched in such a manner.

Finally, Defendants contend the emails “were not intended to operate as standalone solicitations sprung upon unsuspecting clients,” (Resp. at 13:13-14), but that Acrisure agents were instructed to explain the practical effects of switching brokers mid-policy term to the insured and advise them why it would be in their best interest to sign the rescission letter and remain with Acrisure at least until the end of their policy terms.

The declaration of Megan Young, previously Acrisure’s Principal/Account Executive and now current Manager of Large Commercial Operations, Transportation – Midwest, states:

During meetings with Acrisure Truck Group, which occurred multiple times a week starting the second week of April, my supervisor Paul Zizzo and I verbally instructed Client Advisors to reach out to each of their newly assigned insureds to introduce themselves and establish continuity of service from Acrisure, if desired. In particular, we directed Client Advisors to inform these insureds of the potential consequences of switching their broker-of-record during the middle of a policy term.

(Young Decl., ¶ 19.)

In response, Plaintiffs contend, “Even were it true that Client Advisors were instructed to speak with clients before Effika sent the Docusigns, there is no evidence that Client Advisors actually did so, or that these Client Advisors had these conversations prior to the Effika emails being blasted out.” (Reply at 4:21-23.)

The declaration of Zubin Nuggud, a Client Advisor for Acrisure states, “Young directed Client Advisors to inform the insureds formerly serviced by the Departed Employees of the potential consequences of switching their broker-of-record during the middle of a policy term, and to let them know they would receive a rescinding AOR/BOR Letter from Acrisure in case they wanted to continue working with Acrisure as their agent or broker-of-record for the time being.” (Nuggud Dec., ¶ 10.) Nuggud further states, “I took Ms. Young’s direction by calling and emailing the specific insureds assigned to me over the next few days and weeks. (Nuggud Decl., ¶ 11.)

Nuggud attaches one such email to his declaration, which was sent to Acrisure client Multimodal Esquer, Inc., who had provided an AOR/BOR Letter on 4/14/26, appointing Howden as their agent or broker-of-record. (Nuggud Decl., ¶ 12.)

Nuggud's 4/17/26 email states, in part:

My name is Zubin Nuggud, and I am a Client Advisor who specializes in trucking with Acrisure.

There have been some very recent changes here and I wanted to let you know your agent Jerry Rodriguez is no longer with our company. I have been assigned your policy and will be your new agent/client advisor.

I see you have already signed a BOR for another agency, and I was hoping we can retain your business and not have you and your MC go through the pains of switching agents and carriers etc. *Are you willing to sign a rescinding BOR keeping Acrisure as your agent? If so, please let me know and I will send the form for you to sign. . . .*

(Nuggud Decl., ¶ 12, Ex. 2 [emphasis added].)

The client responded, "Can you take a call? If yes please confirm time and number." (Nuggud Decl., ¶ 12, Ex. 2.)

Nuggud's email clearly states he notes the client has signed a BOR for another agency, that he hoped to retain the client's business, and asked whether the client would be "willing to sign a rescinding BOR keeping Acrisure as your agent." (Nuggud Decl., ¶ 12, Ex. 2.) This is consistent with the content of the document attached to the emails, which refer to rescinding a BOR. This also supports Defendants' contention Acrisure agents were instructed to provide context for the emails and their content prior to their delivery.

Given the above, the Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unfair or fraudulent under the UCL.

Insurance Code section 1631

Plaintiffs further contend the emails were unlawful as they violated Insurance Code section 1631.

Sections 1631 and 1623, subdivision (a) of the Insurance Code prohibit an unlicensed person from soliciting, negotiating, or effecting "contracts of insurance" or acting "as an insurance broker," i.e., "a person who, for compensation and on behalf of another person, transacts insurance . . . with . . . an admitted insurer."

Section 22 provides, "Insurance is a contract whereby one undertakes to indemnify another against loss, damage, or liability arising from a contingent or unknown event." Section 380 provides, "The written instrument, in which a contract of insurance is set forth, is the policy."

Defendants contend an AOR/BOR is not a "contract of insurance, but rather, "the predicate instrument that authorizes a broker to transact

insurance.” (Resp. at 14:8-9.) Plaintiffs contend only Defendants fail to cite authority in support of this contention. (Reply 7:15-17.)

The letter attached to an email does not purport to indemnify the client against loss, damage, or liability. Nor does it purport to constitute any form of an insurance policy.

As set forth above, it is Plaintiffs’ duty to show all elements necessary to support issuance of a preliminary injunction.

The Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unlawful pursuant to Insurance Code section 1631.

Business and Professions Code section 17529.5(a), (2)-(3)

Plaintiffs also contend the emails were unlawful as they violated Business and Professions Code section 17529.5.

Business and Professions Code section 17529.5, subdivisions (a)(2), (a)(3), make it “unlawful for any person or entity to advertise in a commercial e-mail advertisement” where the advertisement “contains or is accompanied by falsified, misrepresented, or forged header information,” or “has a subject line that a person knows would be likely to mislead a recipient, acting reasonably under the circumstances, about a material fact regarding the contents or subject matter of the message.”

Section 17529.1, subdivision (c) defines “[c]ommercial e-mail advertisement” to mean any electronic mail message initiated for the purpose of advertising or promoting the lease, sale, rental, gift offer, or other disposition of any property, goods, services, or extension of credit.

Domain names are part of the e-mail header information within the meaning of section 17529.5, subdivision (a)(2). (*See Kleffman v. Vonage Holdings Corp.* (2010) 49 Cal.4th 334, 340.) Plaintiffs do not contend the domain name, “@acrisurellc.com,” was forged or falsified.

Nor do Plaintiffs demonstrate the email and its contents were accompanied by misrepresented header information or had a subject line that would likely mislead the recipient about the contents of the email.

The subject line of the emails, “Rescinding AOR” (followed by the client’s name), accurately reflects what the attached letter purported to do, that is rescind Howden US as broker of record and reappoint Acrisure. It is also consistent with what Defendants’ Client Advisors were directed to inform clients about regarding receiving a rescinding BOR from Acrisure.

The Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unlawful pursuant to Business and Professions Code section 17529.51.

Cause of action for tortious interference with prospective economic advantage.

“An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) the defendant's intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant's acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (*SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.* (2007) 148 Cal.App.4th 663, 671 fn. 7 [cleaned up].)

For the reasons discussed above, the Court find Plaintiffs have not demonstrated “an independently wrongful act in disrupting the relationship” and therefore have not demonstrated the likelihood of prevailing on this claim.

Balancing of harm

“An evaluation of the relative harm to the parties upon the granting or denial of a preliminary injunction requires consideration of: ‘(1) the inadequacy of any other remedy; (2) the degree of irreparable injury the denial of the injunction will cause; (3) the necessity to preserve the status quo; [and] (4) the degree of adverse effect on the public interest or interests of third parties the granting of the injunction will cause.’” (*Vo v. City of Garden Grove* (2004) 115 Cal.App.4th 425, 435 [citation omitted].)

Plaintiffs contend they are at risk of harm by Defendants’ conduct as it has the effect of stealing clients from Howden US and posing a risk of loss of Howden US’s reputation and goodwill.

Plaintiffs’ contentions as to the purported harm (e.g., losing clients) rely on their premise Defendants’ conduct with respect to the emails is unlawful and deceptive. As discussed above, however, Plaintiffs have not demonstrated such conduct was unlawful or fraudulent.

Plaintiffs further contend at least three Howden US customers unwittingly signed the rescission letter, but that an unknown number of others “may have already succumbed to the deception.” (Reply at 8:18-19; Thomas Decl., ¶ 54.)

As an initial matter, as the emailing of BOR letters to specific impacted insured has already been completed, Defendants do not intend to use the third party service to send any further AOR/BOR Letters to impacted insureds in the foreseeable future. (Young Decl., ¶ 25.)

		Moreover, Plaintiffs’ contention others “may have succumbed” to the deception is merely speculative and the fact that other clients may have signed the BOR does not necessarily indicate they did so only because they were deceived. Finally, in the event Plaintiffs succeed on their claims, they would be entitled to legal damages as compensation for harm suffered. Plaintiffs can demonstrate, for example, the profit it would have earned for each client they claim was impacted by Defendants’ conduct. Accordingly, Plaintiffs have not sufficiently shown the balancing of harm lies in their favor.
7	24-01406442 <i>Jacobson vs. Thomas</i>	Motion to Compel Production Plaintiff Steven Jacobson’s Motion to Compel Defendant Radnet Management, Inc.’s Further Responses Plaintiff’s Requests for Production, set six, is DENIED. Plaintiff’s requests for production nos. 49 and 50 seek information related to claimed violations of Business and Professions Code section 655.8. Radent’s responses sufficiently identify the relevant information to show there was no violation and Plaintiff fails to present any evidence to show there is a need for further discovery. “It is unlawful for any person licensed under this division or under any initiative act referred to in this division to charge, bill, or otherwise solicit payment from any patient, client, customer, or third-party payer for performance of the technical component of Computerized Tomography (CT), Positron Emission Tomography (PET), or Magnetic Resonance Imaging (MRI) diagnostic imaging services if those services were not actually rendered by the licensee or a person under his or her supervision.” (Bus. & Prof. Code, § 655.8(a).) “Nothing in this section prohibits a licensee or a physician entity from billing globally for professional and technical components if both of the following conditions are met: [¶] (1) Neither the physician, or any member of his or her medical group, nor the physician entity has ordered the diagnostic imaging services. [¶] (2) The physician, or a member of his or her medical group, or the physician entity provides the professional interpretation of the diagnostic imaging service.” (Bus. & Prof. Code, § 655.8(d).) First, the imaging was ordered by William Thomas, DC, who is not affiliated with BRMG III. (Iacopino Decl., ¶ 9.) Second, BRMG III has a contract with Santa Ana Tustin Radiology Medical Group (SATR) who provides radiologists to interpret imaging studies done at BRMG III. (Iacopino Decl., ¶ 8.) Dr. Patel interpreted Plaintiff’s imaging studies pursuant to this contract between BRMG III and SATR. (Iacopino Decl., ¶ 8.) Thus, there was no violation of Section 655.8 as claimed by Plaintiff and Plaintiff fails to show there is any need to order further discovery into the matter.